



CONSULTANT AGREEMENT

This Consulting Agreement (hereinafter referred to as "Agreement") lays down the terms of engagement, agreed upon by the Company and the Consultant.

This Agreement is executed on **24-Aug-2025**

BY AND BETWEEN

ACA Technologies, having its corporate office at No:18/2 Govindarajulu Street, Agaram, Chennai-600082 (hereinafter referred to as the "Company" which expression shall unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the **FIRST PART**;

AND

Anil residing at **No. 12, Anna Nagar, Chennai, Tamil Nadu 600040** (hereinafter referred to as the "Consultant", which expression shall, unless repugnant to the meaning or context hereof, be deemed to include all heirs, executors and administrators) of the **SECOND PART**.

The Company and the Consultant are hereinafter individually referred to as the "Party" and collectively as the "Parties".

WHEREAS the parties hereto desire to enter into this Agreement to define and set forth the terms and conditions of the engagement of the Consultant by the Company;

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES AND COVENANTS HEREIN CONTAINED, THE PARTIES HERETO AGREES AS FOLLOWS:

1. Terms and conditions of Engagement

The Consultant has been engaged as of the date of this agreement, which will be considered the acceptance date for the terms outlined herein. The Memorandum of Understanding (MOU) will be valid for a period of 12 months from the acceptance date. The training start date and scope of service will be communicated to you through a Purchase Order (PO) which will be released before the training engagement. The Consultant commits to delivering the services detailed in the Purchase Order (PO) (referred to as the "Scope of Services and Work") and agrees to offer any other reasonably requested services in connection with this Agreement.

1.1. The Consultant agrees to perform the Services in a timely manner, and to exercise all reasonable skill and care in the performance of the Services.

1.2. The Consultant shall provide the Company promptly with any information, data or documents which may be reasonably required in connection with the Services under this Agreement.

1.3. Unless otherwise agreed by the parties in writing, the Company shall at its own expense supply the Consultant with all necessary documents and materials, and all necessary data or other information as may be necessary for the Consultant to carry out the Services.

1.4. The Company shall provide reasonable co-operation to the Consultant in relation to the performance of the Services by the Consultant mentioned under this Agreement.

1.5. The training will take place in a client location and the location of the training will be notified to the consultant within sufficient time to enable the Consultant to reach the destination.

1.6. For the benefit of the Consultants and to ensure seamless execution of the training sessions, the Company will provide an orientation/Train the Trainer session for a week leading up to the training start date.

1.7. During the engagement, the consultant shall be responsible for providing their own personal laptop or computer equipment necessary for the performance of their duties.

2. Tenure:

The initial term of this agreement will commence upon the start date of the training program and will remain in effect for a duration mentioned in the Purchase Order (PO), unless either party provides a notice of termination in accordance with clause 9 below.

3. Leaves & Holidays:

3.1 Leave Policy and Absence:

3.1.1. The consultant is expected to refrain from taking any leave during the engagement, except in cases of genuine emergencies.

3.1.2. In the event of a genuine emergency, the consultant is permitted to take a maximum of three days of leave.

3.1.3. To ensure a smooth continuation of the engagement without disrupting the project or client's requirements, the consultant must provide a minimum of five days' prior notice to the Company when requesting leave.

3.1.4. If the consultant is absent from work, the day of absence will be treated as a loss of pay.

3.2 Non-Payment for Holidays:

3.2.1. The consultant will not receive payment during public holidays, or any other holidays declared by the client.

3.3 Unforeseen Incidents and Cancellation of Training Sessions:

3.3.1. Unforeseen incidents like rain, strikes, or circumstances beyond either party's control may result in the cancellation of training sessions.

3.3.2. The company is not obligated to make payment for the duration of the cancellation period caused by such incidents.

3.3.3. Both parties acknowledge that these circumstances can temporarily suspend contractual obligations without penalty or liability.

3.3.4. Once the unforeseen incident is resolved, the training sessions will resume as agreed upon in the contract, without prejudice to any other rights or remedies available to either party.

3.3.5. In the event of batch cancellation due to reasons such as reduction in the number of learners, changes in the training schedule, or cancellation of the batch by the client for any reasons:

- The company will notify the consultant promptly regarding the cancellation.
- Payment will be made only for the days on which training was completed prior to cancellation.

4. Fees and Allowance:

4.1. Subject to any special terms agreed in writing by the parties, the Company shall pay the Consultant fees and charges from time to time for the provision of the Services as set out in the Purchase Order (PO).

4.2. The completeness of the Services and work product shall be determined by the Company in its sole discretion, and the Consultant agrees to make all revisions, additions, deletions or alterations as requested by the Company.

4.3. The tax will be deducted as per the applicable laws. The Consultant shall be solely responsible for any and all taxes, social security contributions or payments, health insurance, and other payroll type taxes or other legal requirements applicable to such compensation or to the Consultant.

4.4. The fees listed in Purchase Order (PO) do not include the relevant GST charges. The Company bears the responsibility of settling any additional GST payments mandated by tax authorities. Any modifications to GST rates will fall under the Company's jurisdiction. The Consultant must furnish GST invoices and ensure accurate completion of GSTR1. Failure to adhere to proper GST filing may result in withholding payment.

4.5. In the event that any travel is required during the training period, the Company shall not be liable for any expenses incurred by the Consultant for such travel. The Consultant acknowledges and agrees that any travel expenses incurred during the training period shall be the sole responsibility of the Consultant.

4.6. Freelance trainers can raise invoices only after completing at least 15 training days. Invoices must be raised only for completed training days.

4.7. Subsequent invoices must be raised after completing each additional 15 training days. If the remaining contract duration is less than 15 days, the final invoice must be raised upon completion of the contract.

4.8. Each invoice must be accompanied by the Purchase Order (PO) issued by ACA Technologies before the commencement of services.

4.9. While submitting subsequent invoices, previous invoice linked to the same PO must be shared alongside for ease of reconciliation.

4.10. Freelancer / Contract Trainer Incentive and Retainer Policy

Additional incentives and retainers, where applicable, are governed by the Freelancer Trainer Incentive and Retainer Policy detailed in Annexure A of this Agreement.

4.11. Payment Escalation Matrix:

Level	Contact Person	Escalation Time Frame	Contact Details	Escalation Criteria
L1	Support Team	12-24 hours	support@hiretrainers.in	Initial inquiry about payment status, missing details, or processing delays
L2	Surender Singh	1-2 business days	surendersingh@hiretrainers.in	No response from Level 1, unsatisfactory resolution, or complex issues requiring senior intervention
L3	Priyadharshini A	2-3 business days	priyadharshini@hiretrainers.in	Issue not resolved at Level 2, or for large, critical payments that are significantly overdue

4.12. The consultant will go through continuous evaluation and rating by the Company, Client and the Trainees. The payments will be made solely based on feedback provided to the Consultant.

Rating **4.2 and above** will get 100% Payment.

The percentage of payment for the rating below 4.2 will be as given below:

- Rating 4 - 4.2 = 75% payment of the total fee
- Rating 3.8 - 4 = 50% payment of the total fee
- Rating 3.5 - 3.8 = 30% payment of the total fee
- Rating <3.5 = No payment for this rating

This condition will be part of the Purchase Order (PO).

5. Duties and Obligations

The Consultant shall diligently provide his/her Services and shall execute all the assignments and projects on timely manner with the highest professional standards and ethical business practices.

5.1. Consultant shall obtain and maintain such licenses, permissions and memberships required for him/her to perform the Services as mentioned in this Agreement.

5.2. The Consultant acknowledges and agrees that if they fail to adequately complete the Work by the agreed due date, the Company has the sole right to cancel this Agreement. If the Consultant fails to meet the Work deadline, they must contact the Company to request **deadline extension at least 24 hours** prior to the due date. Extension may be granted at the Company's sole discretion.

5.3. The training must conform to general standards as determined by the Company. If the training fails to conform to the general standards, the Company has the sole right to request an immediate revision of the Work, deny payment, and/or cancel this Agreement.

6. Representations and Warranties

6.1. Each Party hereby warrants and represents that:

6.1.1. it has the requisite power, legal capacity and authority to enter into this Agreement and to perform its obligations hereunder;

6.1.2. nothing contained in any agreements or Applicable Laws prohibit it from entering into and performing its obligations under this Agreement;

6.1.3. this Agreement constitutes a legal, valid and binding obligation of it, enforceable against it in accordance with the terms of this Agreement.

7. Confidentiality and Non-Disclosure

7.1. The Company owns and may develop, compile and own certain proprietary techniques, trade secrets, and confidential information (collectively, "Confidential Information"). All information relating to the Company or given by Company to the Consultant pursuant to this Agreement shall be deemed to be confidential, including but not limited to details of customers, business contacts, developments, designs, inventions, software, techniques, know-how, data, marketing, sales or other business information.

7.2. The Consultant shall not use Company's Confidential Information for any purpose other than as required to perform its obligations under this Agreement and shall ensure that Consultant's Representatives do not disclose any Confidential Information of the Company at any time.

7.3. The Consultant shall ensure that his/her representatives are provided access to Company's Confidential Information only on a need-to-know-basis and solely for the performance of this Agreement.

7.4. The Consultant agrees that the Confidential Information will be received in confidence and will be used only for performance under and in accordance with this Agreement.

7.5. The Consultant acknowledges and agrees that all Confidential Information constitutes valuable, special and unique assets of the business of the Company. In the event of any breach of this Clause, the Company shall be entitled to equitable relief, including injunctive relief and specific performance.

7.6. The disclosure and supply of the Confidential Information shall not cause transfer of ownership of such information and assignment of Intellectual Property Rights in connection with the same.

8. Intellectual Property Rights

All Intellectual Property Rights comprised in any and all materials (including software, source code, documentation, data, concepts and ideas) created or developed during the term of the Agreement shall, unless otherwise expressly agreed between the Parties, be deemed to be irrevocably assigned to and shall vest in the Company upon creation without further charge. If required by the Company, Consultant shall do all things and sign all documents necessary to vest all such Intellectual Property Rights in the Company.

9. Termination

9.1. The Company may terminate this Agreement **immediately** upon written notice to the Consultant if:

9.1.1. The Consultant is in material breach of this Agreement and has failed to cure such breach within **five (5) days** after its receipt of written notice of such breach, or

9.1.2. The Consultant is unable to perform the Services or has materially or repeatedly breached any of the terms of this Agreement; or

9.1.3. He/she fails to meet the required qualifications or any act that demonstrates a disregard on his/her part for the reputation or legitimate business interests of the Company.

9.1.4. Performance:

- a. If the consultant's performance is deemed unsatisfactory by the Client, the Company retains the right to terminate this contract. However, if the Company believes that the performance concern is capable of being resolved, the individual will be granted a reasonable period to rectify the issue.
- b. If the consultant is terminated after allowing time to address the issue, their fee will be calculated on a prorated basis for the days they were deployed, with 75% of the payment being made and the remaining 25% being retained by the company.
- c. The disbursement of the 75% payment to the consultant will only be made after the Client has completed their payment to the Company for the duration of the consultant's services.

9.1.5. POSH & Disciplinary:

In the event of a substantiated violation of the Prevention of Sexual Harassment (POSH) policy or any other disciplinary policy established by the Company, the Company reserves the right to terminate this contract with immediate effect, without any prior notice or compensation. The decision to terminate shall be at the sole discretion of the Company after conducting a thorough investigation.

9.1.6. Confidentiality:

Should the Consultant breach the confidentiality agreement as specified, the company reserves the right to terminate the contractual relationship with immediate effect. Any pending or future payments to the Consultant will not be processed. Such termination shall be without prejudice to any rights which might have been accrued prior to termination.

9.2. Either Party may terminate this Agreement without reason, by giving two weeks written notice at any time to the other Party.

9.3. Consequences of Termination:

The termination and/or expiry of this Agreement shall automatically terminate and extinguish any rights granted to the Consultant under this Agreement.

- a. The Consultant's access to and use of any Company's systems and information shall cease immediately.
- b. The Consultant shall be released from all obligations under this Agreement, including the obligations to provide Services.
- c. The Consultant shall return all Confidential Information and documentation, including all copies thereof, to the Company within 24 hours after the termination.
- d. Company shall be released from all obligations to make payments of any remaining portion of the consideration amount for which no Services have been provided.
- e. The termination/expiry of this Agreement shall not affect any rights or liabilities that may have accrued to a Party prior to such termination/expiry.

10. Indemnity

10.1. The Consultant hereby agrees to indemnify, defend and hold harmless the Company and its affiliates and all their officers, directors, owners, agents, employees, content providers, partners, licensors and licensees from and against any and all losses, damages, liabilities, and claims and all fees, costs and expenses of any kind related thereto (including reasonable attorneys' fees) incurred in connection with any claims arising from the breach of this Agreement.

10.2. Company reserves the right, at its own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by the Consultant, and the Consultant agrees that it shall not in any event settle any matter without the prior written consent of the Company.

11. Notices

All notices under this Agreement shall be written in English and shall be sent by hand or by courier or by facsimile to the applicable Party at the contact details indicated below:

(a) If to **ACA Technologies**, at:

Attention: **Arjun**

Address: No:18/2 Govindarajulu Street, Agaram, Chennai-600082

(b) If to the Consultant at:

Attention: **Anil**

Address: **No. 12, Anna Nagar, Chennai, Tamil Nadu 600040**

12. Miscellaneous

12.1. Further Acts and Assurances

Each Party hereto shall co-operate with the other and execute and deliver to the other such instruments and documents as may be required under Applicable Law or as may be necessary or reasonably requested from time to time in order to carry out, give effect to and confirm their rights and intended purpose of this Agreement.

12.2. Nature of the Relationship

The arrangements between the Parties under this Agreement have been entered into on a principal-to-principal basis and do not create any employee-employer relationship between the Parties. Nothing contained in this Agreement shall be deemed to create any partnership, joint venture, or employment relationship between the Parties.

12.3. Dispute Resolution

- a. In the event of any dispute arising out of or in connection with this Agreement, the Parties shall make best efforts to settle the Dispute by mutual conciliation.
- b. In the event that the Dispute cannot be resolved through amicable discussions within 7 (seven) business days, either Party may refer the Dispute to be finally settled by binding arbitration under the Indian Arbitration and Conciliation Act, 1996. All arbitration proceedings shall be conducted in the English language and the seat and venue of arbitration shall be Coimbatore.
- c. The award of the arbitrator shall be final and conclusive and binding upon the Parties.
- d. The arbitrator may award to a Party that substantially prevails on the merits, its costs and expenses including fees of its counsel.

12.4. Governing Law

This Agreement shall be governed and construed in accordance with Indian Laws and subject to the exclusive jurisdiction of competent courts at Coimbatore.

12.5. Modification

Any modification of this Agreement or additional obligation assumed by either party in connection with this Agreement shall be binding only if evidenced in writing signed by each party or an authorized representative of each party.

12.6. Entire Agreement

The Parties hereto confirm and acknowledge that this Agreement shall constitute the entire agreement between them and all earlier agreements, arrangements, letters, correspondence and understandings, either written or verbal, with respect to the subject matter herein stand superseded by this Agreement. No amendment, modification or addition to this Agreement shall be binding on either of the Parties hereto unless set forth in writing and executed by the Parties through their duly authorized representatives.

IN WITNESS WHEREOF the Parties hereto have executed this Agreement on the day and year first above written.

Signed and delivered for and on behalf of:

For ACA Technologies,

Agreed and Accepted

Authorized Signatory

Name: Arjun

Title: Consultant

Date: 24-Aug-2025

Authorized Signatory

Name: Anil

Title: Trainer

Date: 24-Aug-2025

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ANNEXURE A

The following details will be available on the Purchase Order (PO)

1. Training Start and End date
2. Tenure of the engagement
3. Scope of Services and Work
4. Training Fees
5. Payment terms and conditions